

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:  
Date Purchased:

-----X  
PATRICK EDWARDS and KEITHLYN DECAMBRE,

**SUMMONS**

Plaintiffs,

-against-

Plaintiffs designate  
BRONX County as the  
place of trial

CITY OF NEW YORK, P.O. VICTOR REYES and  
OFFICERS JOHN AND JAMES DOE, names presently  
unknowable by Plaintiffs and meant to designate  
additional offending officers,

The basis of venue is:  
CPLR 504 (3)

Defendants.

-----X  
**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and  
serve a copy of your answer, or, if the complaint is not served with this summons, to  
serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the  
service of this summons, exclusive of the day of service, where service is made by  
delivery upon you personally within the state, or within 30 days after completion of  
service where service is made in any other manner. In case of your failure to appear or  
answer, judgment will be taken against you by default for the relief demanded in the  
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

April 29, 2018



By: **JONATHAN L. GLEIT, ESQ.**  
*Attorney for Plaintiffs*

888 Grand Concourse  
Suite 1-O  
Bronx, NY 10451  
(718) 742-0200

To:  
CITY OF NEW YORK CORPORATION COUNSEL  
100 Church Street, 4th Floor, Law Dept.  
New York, New York 10007

P.O. Victor Reyes, Shield 002151 of the NARCBX  
1 Police Plaza, OCCB Room 1310, NY NY 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
PATRICK EDWARDS and KEITHLYN DECAMBRE,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. VICTOR REYES and  
OFFICER[S] JOHN AND JAMES DOE, names presently  
unknowable by Plaintiffs and and meant to designate  
additional offending officers,

Defendants.  
-----X

Plaintiffs, by their attorney, Jonathan L. Gleit, Esq., complaining of the  
Defendants, respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE**  
**PLAINTIFFS PATRICK EDWARDS and KEITHLYN DECAMBRE**

1. At the time of the commencement of this action, Plaintiff PATRICK EDWARDS  
was and still is a resident of the County of Bronx, City and State of New York.

2. At the time of the commencement of this action, Plaintiff KEITHLYN  
DECAMBRE, was and still is a resident of the County of Bronx, City and State of New  
York.

3. That the causes of action alleged herein arose in the County of Bronx, City and  
State of New York.

4. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
5. That the CITY OF NEW YORK maintains a Police Department.
6. That on and about March 11, 2017, P.O. VICTOR REYES was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
7. That on and about March 11, 2017, at approximately 3 P.M. P.O. VICTOR REYES was working and acting within the scope of his employment as a Police Officer, and under the color of law.
8. That on and about March 11, 2017, OFFICER[S] JOHN AND/OR JAMES DOE, whose actual identities are presently unknowable by Plaintiffs but necessarily known by Defendants as being involved in the instant arrests of Plaintiffs, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
9. That on and about March 11, 2017, at approximately 3 P.M. OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
10. That on or about March 11, 2017 at approximately approximately 3 PM., at or near the the premises 3959 Seton Avenue, Bronx, New York, the Plaintiffs PATRICK

EDWARDS and KEITHLYN DECAMBRE were improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine PATRICK EDWARDS and KEITHLYN DECAMBRE.

11. That the defendants, their agents, servants and/or employees arrested the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE without any basis in law or fact and without reasonable, probable or just cause or justification.

12. That the defendants, their agents, servants and/or employees arrested the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

13. That the defendants P.O. VICTOR REYES and/or OFFICER[S] JOHN AND JAMES DOE, did, during the aforesaid unlawful detentions and arrests of Plaintiffs, forcible touched Plaintiffs and physically restrained Plaintiffs, which unwanted touching did constitute assaults and battery upon Plaintiffs.

14. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE, who were aware of their unlawful detentions and

confinements and took their property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

15. That at the time and place aforesaid, the defendant P.O. VICTOR REYES did detain and question and search the plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE without any reasonable basis or suspicion that they had or were about to engage in criminal activity.

16. That at the time and place aforesaid, the defendant P.O. VICTOR REYES did wrongfully arrest Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE and did accuse them of possessing things that they did not, and in fact could not have possessed.

17. That at the time and place aforesaid, the defendants OFFICER[S] JOHN AND JAMES DOE did fail to intercede upon the wrongful arrests and detentions of Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE.

18. That following their initial detention at the 47th Precinct, Plaintiffs were transported to Central Booking at Bronx Criminal Court, where their wrongful detentions continued.

19. That all criminal charges brought against Plaintiffs, which were brought under arrest numbers B17613674 and B17613662, respectively, in the Criminal Court of the City

of New York, Bronx County regarding the incidents of March 11, 2017, were dismissed when the District Attorney of Bronx County, by Assistant District Attorney Garrett S. Barmore, Declined to Prosecute Plaintiffs due to a lack of probable cause to arrest the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE, and the prosecutions were terminated in Plaintiffs' favor, Plaintiffs' wrongful detention continued for periods exceeding 24 hours.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

21. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause without individualized reasonable suspicion of the possession of things they did not and could not legally have possessed, are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal

investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

22. Said policy, practice and procedure of having arrest quotas and /or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons present at a specific location even though certain persons at the specified location did not, and in fact, could not, have possessed certain items deemed to be illicit.

24. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009

and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

25. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by and has occurred to such individuals such as SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at or near 2584 Briggs Avenue , Bronx, New York; and ADEUNA CABRAL ,an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010; and SAMUEL ALLEN on February 3, 2010 inside 1371 College Avenue, Bronx, New York ; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010, at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010 at 2155 Grand Avenue, Apt. 1D, Bronx, New York; and; TREENA WILSON and KENNETH CLARKE on April 8, 2010 in front of 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street,

Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNEY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; and VIVIAN BENNETT, TONY BENNETT, OLIVIA BENNETT, ELIZABETH BENNETT, AHMED BAKYOKO and KEVIN TILLMAN on July 21, 2011 at 1065 University Place, Apartment 2B, Bronx, New York; TIFFANY and CAROLYN HOLMAN on October 21, 2011 at 4647 Park Avenue, Bronx, New York; CHRISTINA MEDINA on June 1, 2012 at 2140 Cruger Avenue, Bronx New York; GINNY TAPP on January 23, 2013 at 2089 Arthur Avenue, Bronx, New York; GERALD ADORNO and TINAMARIE ADORNO on November 14, 2013 at Apartment 2F of 1512 East 172nd Street, Bronx, New York and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

26. That no negligence or actions on the part of the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE contributed to the occurrences alleged herein in any manner whatsoever.

27. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq.,

and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

29. That as a result of the foregoing, the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE**

**PLAINTIFF PATRICK EDWARDS**

30. That Plaintiff PATRICK EDWARDS repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 29 as though more fully set forth herein.

31. That on June 1, 2017, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

32. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

33. The CITY OF NEW YORK conducted a General Municipal Law §50h hearing of Plaintiff PATRICK EDWARDS on January 10, 2018 and Plaintiff PATRICK EDWARDS did give testimony thereat.

34. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

35. That on or about March 11, 2017 at approximately 3 P.M., at or near the the premises 3959 Seton Avenue, Bronx, New York, the Plaintiff PATRICK EDWARDS was improperly arrested and confined without warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest PATRICK EDWARDS.

36. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff PATRICK EDWARDS of Due Process under Law.

37. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. VICTOR REYES and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

38. That the Plaintiff PATRICK EDWARDS, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. VICTOR REYES and OFFICER[S] JOHN AND/OR JAMES DOE.

39. That all criminal charges brought against Plaintiff PATRICK EDWARDS, which were brought under arrest number B1761374 in the Criminal Court of the City of New

York, Bronx County regarding the incidents of March 11, 2017, were dismissed when the District Attorney of Bronx County, by Assistant District Attorney Garrett S. Barmore, Declined to Prosecute plaintiff due to a lack of probable cause to arrest the plaintiff PATRICK EDWARDS, and the prosecution was terminated in Plaintiff's favor and Plaintiff's wrongful detention continued until approximately 5 P.M. on March 12, 2017

40. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

41. That as a result of the foregoing, the Plaintiff PATRICK EDWARDS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE**

**PLAINTIFF KEITHLYN DECAMBRE**

42. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 41 as though more fully set forth herein.

43. That on April 5, 2017, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the

claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

44. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

45. The CITY OF NEW YORK conducted a General Municipal Law §50h hearing of Plaintiff KEITHLYN DECAMBRE on July 12, 2017 and Plaintiff KEITHLYN DECAMBRE did give testimony thereat.

46. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

47. That on or about March 11, 2017 at approximately 3 P.M., at or near the the premises 3959 Seton Avenue, Bronx, New York, the Plaintiff KEITHLYN DECAMBRE was improperly arrested and confined without warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest KEITHLYN DECAMBRE.

48. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff KEITHLYN DECAMBRE of Due Process under Law.

49. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants

and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. VICTOR REYES and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

50. That the Plaintiff KEITHLYN DECAMBRE, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. VICTOR REYES and OFFICER[S] JOHN AND/OR JAMES DOE.

51. That all criminal charges brought against Plaintiff KEITHLYN DECAMBRE, which were brought under arrest number B17613662 in the Criminal Court of the City of New York, Bronx County regarding the incidents of March 11, 2017, were dismissed when the District Attorney of Bronx County, by Assistant District Attorney Garrett S. Barmore, Declined to Prosecute Plaintiff due to a lack of probable cause to arrest the Plaintiff PATRICK EDWARDS, and the prosecution was terminated in plaintiff's favor and plaintiff's wrongful detention continued until approximately 5 P.M. on March 12, 2017

52. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

53. That as a result of the foregoing, the Plaintiff PATRICK EDWARDS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE**  
**PLAINTIFFS PATRICK EDWARDS and KEITHLYN DECAMBRE**

54. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

55. That during their aforesaid wrongful arrests, the defendants, their agents, servants and/or employees did forcibly and unlawfully restrain Plaintiffs, and did thereby offend Plaintiffs with unwanted touching, which constituted assaults and battery upon Plaintiffs .

56. As a result of the aforesaid assaults and battery, Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE received injuries with accompanying physical and emotional pain and suffering; that the Plaintiffs were made, still are and will continue to be sick, sore and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to care for and render, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiff were and

in the future will be prevented from attending to Plaintiffs' usual vocation and avocations and were otherwise damaged and injured.

57. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

59. That as a result of the foregoing, the Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE**  
**PLAINTIFF PATRICK EDWARDS and KEITHLYN DECAMBRE**

60. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

61. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

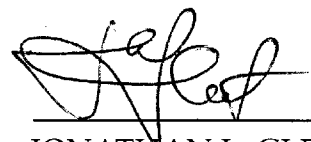
62. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest and detention of individuals and in the proper use of force.

63. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiffs PATRICK EDWARDS and KEITHLYN DECAMBRE were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiffs were made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiffs were and in the future will be prevented from attending to Plaintiffs' usual vocation and avocations; all to the Plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

64. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First Second, Third, Fourth and Fifth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.  
April 29, 2018



By: JONATHAN L. GLEIT, ESQ.  
*Attorney for Plaintiffs*

PATRICK EDWARDS and  
KEITHLYN DECAMBRE

888 Grand Concourse  
Suite 1-O  
Bronx, NY 10451  
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL  
100 Church Street, 4th Floor, Law Dept.  
New York, New York 10007

P.O. Victor Reyes, Shield 002151 of the NARCB BX  
1 Police Plaza, OCCB Room 1310, NY NY 10038

## PLAINTIFF'S VERIFICATION

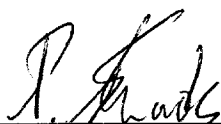
PATRICK EDWARDS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

*Complaint*

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

  
\_\_\_\_\_  
PATRICK EDWARDS

  
JONATHAN LOUIS GLEIT  
Notary Public, State of NY  
No. 31-4979332  
Qualified in Westchester County  
Commission Expires March 25, 2019